

SOMNATH SEN

Mining, which own mining leases. The EC has also asked for information about minister Mithilesh Thakur's commercial activities. The BJP's Dubey had tweeted on May 14 that the EC might serve notice to Thakur too.

THE LEGAL CHALLENGE

Though Soren holds the mining and environment portfolios, he still got a lease renewed for 0.88 acres in Angara block of Ranchi. A letter of intent to mine granite-gneiss rocks (known as 'building stones') was issued by Ranchi's district mining office in June 2021. Green clearances were also granted.

State advocate general Rajiv Ranjan on April 8 informed the Jharkhand High Court that Soren "has disassociated himself from the lease and had surrendered it in February 2022". In an affidavit to the court this month, Soren submitted that the act of acquiring a mine lease "does not entail his disqualification as an MLA", and claimed the PIL on the issue was a bid to "destabilise the democratically elected government". The affidavit also says the mining lease was granted for a period of 10 years on May 17, 2008. Soren says he applied for renewal of the lease in 2018 and, when it lapsed, again in 2021. The CM's main defence is that he surrendered the lease without beginning any extraction, so there was no profit made. JMM general secretary Supriyo Bhattacharya alleges a "manufactured conspiracy" and claims the CM " has declared the leased land in his various election affidavits".

But even the most optimistic JMM supporters accept privately that the Soren brothers are staring at a real possibility of disqualification. The good news is that the JMM-Congress-RJD alliance has an absolute majority (48 MLAs) in the 82-member Jharkhand assembly, which includes a nominated seat. Of these, the JMM has 30 MLAs (including the Sorens), Congress has on paper 17 (with Jharkhand Vikas Morcha MLA Pradeep Yadav, who defected to the party in February 2020) and RJD one.

The BJP has an effective strength of 26 with JVM founder Babulal Marandi rejoining the party last February. But the defections of Pradeep Yadav and Marandi are yet to be approved by the assembly speaker. With the two members of the All Jharkhand Students Union (AJSU), the NDA has 28 MLAs, not nearly enough to challenge the ruling alliance in Jharkhand.

A DENT IN THE IMAGE

Hemant Soren is the son of JMM founder Shibu Soren, who fought against non-tribal oppressors and illegal mining operators during his agitation days in the 1970s. This is his second term as Jharkhand chief minister. Compared to his first term, an 18-month tenure that ended in December 2014, the 46-year-old CM seemed a proactive and confident leader this time, astutely mixing pro-tribal politics with good governance measures. However, just when Hemant appeared to be coming out of his father's shadow, the mining controversy has struck. Bhattacharya says the party does have a plan B in mind for a worst-case scenario (read disqualification), but did not elaborate.

Other party sources say this includes the option of Hemant continuing as CM even if disqualified, as the Constitution allows a non-member (of the legislative assembly) to be a minister for six months while he approaches the courts for relief. "But if this becomes untenable, he can pick someone from the family like father Shibu, mother Rupi or wife Kalpana as a stopgap successor," says a close aide. Despite the JMM-led regime's clear majority in the assembly now, Hemant's stepping down may trigger turmoil in the party.

The opposition BJP also points to Hemant's sister-in-law and MLA Sita Soren, wife of his late brother Durga Soren, who has already thrown a challenge to the government. Sita had written a letter to Governor Ramesh Bais last month, alleging 'corruption and misgovernance'. Sita has no love lost for Hemant and his family, and fancies herself as the real inheritor of her late husband's legacy. Durga was the chosen one before his untimely death in May 2009. It looks like matters could get murkier in the days ahead for CM Soren. ■